

**FEDERAL MARITIME COMMISSION**  
**Office of Administrative Law Judges**

FORMUKLEEN, INC., *Complainant*

v.

TOP SHIPPING SYSTEMS, CORP., *Respondent*.

**DOCKET NO. 25-08**

Served: May 14, 2026

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**ORDER OF:** Richard AMBROW, *Administrative Law Judge*.

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**ORDER GRANTING IN PART AND DENYING IN PART CONSENT MOTION OF SPECTOR RUBIN, P.A. AND ATTORNEYS ANDREW R. SPECTOR, ESQ., ROBERT M. BORAK, ESQ., AND IDANIA K. BOND, ESQ., TO WITHDRAW AS COUNSEL FOR RESPONDENT TOP SHIPPING SYSTEMS, CORP.**

On May 13, 2026, counsel for Respondent (the “Firm”) filed a Consent Motion of Spector Rubin, P.A., and attorneys Andrew R. Spector, Esq., Robert M. Borak, Esq., and Idania K. Bond, Esq. to Withdraw as Counsel for Respondent Top Shipping Systems Corp. (“Motion to Withdraw”).

In the Motion to Withdraw, the Firm asserts that “irreconcilable differences have arisen” between Respondent and the Firm that have materially impacted the attorney-client relationship and make continued representation unreasonably difficult. (Motion to Withdraw, at 1). The Firm also represents that while withdrawal can be accomplished without material adverse effect on the interests of Respondent or any other party to this proceeding, the Firm asks that “Respondent be afforded sufficient time to retain new counsel in this matter.” (Motion to Withdraw, at 2).

Also on May 13, 2026, Complainant filed Complainant’s Response and Limited Opposition to Respondent’s Counsel’s Consent Motion to Withdraw (“Motion to Withdraw Opp.”). Complainant does not object to the Firm’s withdrawal, but cites to Commission Rule 23(d), which provides “Substitution of counsel or representative will not, by itself, be considered good cause for delaying a proceeding” (46 C.F.R. § 502.23(d)), in order to oppose any extensions or delays based on the Firm’s withdrawal. (*See generally* Motion to Withdraw Opp.).

Commission Rule 23 provides that:

If an attorney wishes to withdraw from representing a party, and written consent is not obtained, or if the party is not otherwise represented, the withdrawing attorney shall file an appropriate motion seeking permission to withdraw and provide appropriate reasons for making the motion. Such motion will be decided in consideration of the factors and standards set forth in Rule 1.16 of the

American Bar Association's ["ABA"] Model Rules of Professional Conduct ["MRPC"] and by the courts.

(46 C.F.R. § 502.23(e)). In turn, Rules 1.16(b) and (c) of the ABA's MRPC provide:

(b) Except as stated in paragraph (c), a lawyer may withdraw from representing a client if:

- (1) withdrawal can be accomplished without material adverse effect on the interests of the client;
- (2) the client persists in a course of action involving the lawyer's services that the lawyer reasonably believes is criminal or fraudulent;
- (3) the client has used the lawyer's services to perpetrate a crime or fraud;
- (4) the client insists upon taking action that the lawyer considers repugnant or with which the lawyer has a fundamental disagreement;
- (5) the client fails substantially to fulfill an obligation to the lawyer regarding the lawyer's services and has been given reasonable warning that the lawyer will withdraw unless the obligation is fulfilled;
- (6) the representation will result in an unreasonable financial burden on the lawyer or has been rendered unreasonably difficult by the client; or
- (7) other good cause for withdrawal exists.

(c) A lawyer must comply with applicable law requiring notice to or permission of a tribunal when terminating a representation. When ordered to do so by a tribunal, a lawyer shall continue representation notwithstanding good cause for terminating the representation.<sup>1</sup>

Applying these factors to the present case, I accept the representation from the Firm that "irreconcilable differences have arisen" that affect the attorney/client relationship, as well as the Firm's representation that withdrawal can be accomplished without material adverse effect on the interests of the client. Therefore, the Motion to Withdraw is **GRANTED IN PART** to the extent the Firm seeks to withdraw.

The Motion to Withdraw also asks that Respondent "be afforded sufficient time to retain counsel in this matter." (Motion to Withdraw, at 2). The Motion to Withdraw does not ask for any specific relief, but I understand that the Motion to Withdraw is obliquely asking to stay or extend upcoming deadlines. The Firm points out that discovery cut-off is May 22, 2026, that Respondent anticipates filing discovery motions and a motion to extend discovery, and that Respondent needs to respond to Complainant's Motion to Enforce April 1, 2026 Order as to Requests for Production Nos. 4 and 7 and for Sanctions. (Motion to Withdraw, at 2).

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<sup>1</sup> [Rule 1.16: Declining or Terminating Representation](#) (last visited May 14, 2026).

Based on the Firm's representation that withdrawal can be accomplished without material adverse effect on the interests of the client, as well as the Firm's representation that Respondent will file a motion to extend the discovery deadline, I find that good cause does not exist to extend any deadlines at this time. I will await any forthcoming motion and any further argument or representation before considering any further extensions.<sup>2</sup> Therefore, the Motion to Withdraw is **DENIED IN PART** to the extent it seeks an unspecified extension of deadlines.

Accordingly, it is **HEREBY ORDERED** that the Motion to Withdraw is **GRANTED IN PART** to the extent the Firm seeks to withdraw. It is

**FURTHER ORDERED** that the Motion to Withdraw is **DENIED IN PART** to the extent it requests an extension or stay of currently pending deadlines.

**SO ORDERED**

Richard C. Ambrow Jr -S

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Richard Ambrow  
Administrative Law Judge

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<sup>2</sup> At this stage of the litigation, without a showing of good cause by Respondent, I will be disinclined to grant any additional deadline extension requests by Respondent. This case has been pending almost 11 months. The parties agreed to a discovery schedule last summer. (*See* July 23, 2025, Scheduling Order). The parties apparently did no discovery through November. (*See* November 21, 2025, Order Granting Joint Motion for Protective Order, and Granting in Part Motion to Extend Discovery and Case Deadlines). This case does not appear to be particularly complex – the central issue is whether Respondent was acting as a non-vessel operating common carrier, which was identified as the key issue at least as of the August 28, 2025, Order Denying Motion for Summary Judgment. Considering these facts, I am concerned that Respondent has been squandering its time.